



Terms & Conditions

1. **PRICING:** On establishment of satisfactory credit accommodations, terms are Net 30 days. Noise Unlimited, Inc. (NUI), also doing business as, NU Laboratories reserves the right to require payment if credit information on the Buyer is lacking or unfavorable. A surcharge of 1.5% per month will be applied for all past due amounts owed. If an invoice discrepancy exists, NUI must be contacted in writing within ten (10) calendar days of the invoice date; otherwise NUI will assume the invoice will be paid in full per the original terms. If Noise Unlimited, Inc. commences action to collect any amount owed, it will be entitled to be paid for its expenses, including attorney fees, and any court and collection costs allowed by law.
2. **PARTIAL BILLING:** If for any reason beyond NUI's control the effort required herein is interrupted for a period of ten (10) days or more, the completed portion of the work, including but not limited to fixtures, test set-up, and special tooling, may be billed to the Buyer. Under fixed labor rate or time and material type contracts, invoices may be issued monthly. NU Labs reserves the right to invoice the test minus the report charge at the completion of each test and will issue a report within 30 days of receipt of payment of invoices.
3. **QUOTES:** All prices quoted are firm and fixed for a period of 90 days. Any extensions to pricing must be approved in writing by NUI. NUI's pricing, procedures, and schedules are proprietary information; therefore, published price lists are unavailable. NUI certifies that all prices quoted are no higher than prices quoted to other customers or the Government during the same period for like quantity, delivery, and end use.
4. **COMPLETE AGREEMENT:** NUI's quotation and these terms and conditions constitute the entire agreement that shall not be modified without the written consent of both parties.
5. **BUYER FURNISHED MATERIAL:** The responsibility of NUI concerning quantities of specimens delivered to it shall be limited to (a) counting the specimens and (b) reporting any shortages to the buyer. NUI's count shall be binding upon all parties.
6. **LIABILITY:** Buyer assumes all risk of loss or damage to its property while in the possession of NUI or during transit to or from NUI's facilities. Except by its expressed written consent, NUI shall not be liable for loss or damage to any items consigned or bailed to it including damage or destruction from tests or measurements performed by NUI employees on Buyer furnished material or equipment.
7. **WARRANTY:** NUI warrants that all efforts performed under this contract will comply with those written instructions and procedures, which have been incorporated into and made a part of this agreement. In the absence of written procedures from the Buyer, NUI's standard procedures will apply.
8. **DELIVERY:** Delivery is FOB NUI with Buyer assuming risk of loss for shipment to and from NUI facilities. Unless Buyer specifies a carrier, NUI will deliver to a carrier it believes appropriate and bill charges to Buyer.
9. **GOVERNMENT SOURCE INSPECTION:** Should the Buyer require Government Source Inspection, the Buyer shall supply NUI with sufficient copies of all documentation that the Government may require. The Buyer's failure to provide such documentation in a timely fashion will relieve NUI of responsibilities as to such inspection. NUI's Government representative is an itinerant, and it is estimated that seven (7) working days are adequate time for proper preparation and scheduling.
10. **STOP WORK & CANCELLATION:** The Buyer may, at any time, by written order to NUI, require NUI to stop all, or part of any contract. Upon receipt of the written stop work order, all reasonable steps will be taken to comply with the work stoppage. Within a reasonable period, NUI will issue a termination settlement for all testing completed plus all costs incurred. A minimum processing fee of \$500 will be charged.
11. **PERSONAL INJURY:** Buyer agrees that it will indemnify and hold harmless NUI, its officers, agents, and employees from any loss, cost, expense or liability resulting from injury and/or death to Buyer's employees, or the employees of subcontractors, consultants, or agents of the Buyer to the extent that such personal injury and/or death is caused by the Buyer or its subcontractors or agents during the work performed while the Buyer or any such subcontractors, employees or agents are on or near the site of work where the testing is to be performed.
12. **EXTENDED PERIODS:** NUI reserves the right to review pricing of any purchase order that exceeds six (6) months from date of issue.

The following signature indicates acceptance of the above Terms and Conditions. The above Terms and Conditions are valid through the end of the calendar year, and a new signed copy will be required annually.

Company Name

Signature

Date

Printed Name and Title